

TWELFTH INTERNATIONAL CONFERENCE of LEGAL METROLOGY

Berlin, 26–29 October 2004

DECISIONS and RESOLUTIONS

1 Organization of the Meeting

1.1 The Conference took note of opening and welcome addresses delivered by Dr. Tacke, Vice-Minister of the Federal Ministry of Economics and Labour; Dr. Röhling, Pr. Göbel, President of the PTB, and Pr. Kochsiek, CIML Acting President.

1.2 The roll of Delegates was called and it was found that 54 Member States were present out of a total of 59; the statutory quorum of two-thirds was therefore reached.

The Conference also noted the participation of Observers from certain OIML Corresponding Members, observer countries and International and Regional Liaison Organizations, the CIML Immediate Past-President, one CIML Honorary Member and members of BIML Staff.

1.3 Information concerning voting procedures during Conference sessions was given.

1.4 The Conference unanimously elected Dr. Röhling as Conference President with Pr. Kochsiek (Germany) standing in as and when required, and Mrs. Annabi and Dr. Zhagora as Conference Vice-Presidents.

1.5 The Conference adopted the proposed agenda without modification.

1.6 The Conference established two Working Commissions, one for Financial Matters and one for Technical Work.

1.7 The Conference adopted the proposed schedule.

1.8 The Conference approved the Minutes of the Eleventh Conference without modification.

1.9 The Conference took note of a report presented by the President of the International Committee of Legal Metrology describing the activities of the Organization for the period 2001–2004.

2 Member States and Corresponding Members

2.1 New Members - Expected accessions

The Conference noted that the number of OIML Members had significantly increased since the Eleventh Conference, although a number of Corresponding Members had been delisted for not having paid their subscriptions for over three years. The Conference noted that certain Corresponding Members were envisaging joining as Member States and that a number of countries/economies were expected to join as Corresponding Members.

2.2 The situation of certain Members

The Conference noted that Zambia had been struck off the list of Member States for not having complied with the requirements laid down by the Eleventh Conference.

It was also noted that the situation of two Member States would first be examined by the Finance Commission, which would then report to the Conference under Item 8.2.

3 Long-term policy

3.1 Report on actions carried out since the Eleventh Conference

The Conference took note of a report presented by the BIML Director.

3.2 Guidelines for the period 2005–2008

The Conference noted that most of the information concerning the actions carried out since the Eleventh Conference, including the development of an Action Plan for 1999–2002 with extension to 2004, had been given in the report on activities delivered by the CIML Acting President. The Conference also noted that the Long-Term Policy and the Action Plan shall be revised under the supervision of the newly elected CIML President, and requested the CIML to monitor its implementation.

4 Liaisons with international and regional institutions

4.1 Report on liaisons

The Conference took note of a report presented by the BIML Director.

4.2 Addresses by Representatives of Institutions

The Conference also noted the reports presented by the representatives of:

- ILAC/IAF, Mr. Pierre
- UNIDO, Dr. Loesener-Diaz
- Metre Convention, Dr. Castelazo
- WELMEC, Mr. Freistetters
- APLMF, Dr. Ooiwa
- EMLMF, Mr. Lagauterie
- SADCMEI, Mr. Carstens
- CCE, DG Enterprise, Mrs. Höke
- CECIP, Mr. Anthony.

4.3 The Conference took note of a report presented by the BIML Director concerning the main aspects of cooperation between the OIML and certain International and Regional Organizations. It was noted that a number of matters should be considered in order to globally improve OIML activities in fields connected with, for example, market surveillance, increased use of the work of other international or regional bodies, etc.

The Conference expressed its appreciation for the work carried out jointly with other Organizations.

The Conference invited the CIML President and BIML Director to work actively towards an even closer cooperation with the Metre Convention and a common presentation of international metrology to the public.

As a conclusion, the Conference requested the CIML to duly consider all the comments and proposals put forward during the Conference and to take appropriate measures in order to implement those that are considered as being most appropriate to improve OIML activities.

5 Work of OIML Technical Committees and Subcommittees

5.1 Work undertaken - State of progress

The Conference took note of a report concerning the activities of OIML Technical Committees and Subcommittees and requested the CIML to continue to monitor the situation and to find solutions in order to ensure a better distribution of technical responsibilities amongst OIML Member States.

5.2 Implementation of Recommendations by OIML Members

The Conference took note of information given by the Bureau concerning the implementation of OIML Recommendations in national regulations or voluntary standards. It noted that due to the low level of responses, no comprehensive report could be given.

Member States that had not yet replied to the BIML inquiry were requested to do so urgently. The Conference encouraged the Bureau to convert this information and inquiries into a permanent interactive facility on the OIML web site.

5.3 Formal sanction of Recommendations already approved by the Committee in 2001, 2002, 2003 and 2004

The Conference decided that OIML Test Report Formats, which are of an informative nature concerning their implementation in national regulations, shall be approved by the CIML according to the rules applicable to International Documents, without having to be sanctioned by the Conference.

The Conference sanctioned those new or revised Recommendations already approved by the Committee in 2001, 2002, 2003 and 2004.

Recommendations approved in 2001:

- R 16-1 *Mechanical non-invasive sphygmomanometers* (Edition 2002)
- R 16-2 *Non-invasive automated sphygmomanometers* (Edition 2002)
- R 75-1 *Heat meters. Part 1: General requirements* (Edition 2002)
- R 75-2 *Heat meters. Part 2: Type approval tests* (Edition 2002)
- R 133 *Liquid-in-glass thermometers* (Edition 2002)

Recommendations approved in 2002:

- R 84 *Platinum, copper, and nickel resistance thermometers (for industrial and commercial use)* (Edition 2003)
- R 134-1 *Automatic instruments for weighing road vehicles in motion. Total vehicle weighing* (Edition 2003)

Recommendations approved in 2003:

- R 48 *Tungsten ribbon lamps for the calibration of radiation thermometers* (Edition 2004)
- R 49-1 *Water meters intended for the metering of cold potable water. Part 1: Metrological and technical requirements* (Edition 2003)
- R 49-2 *Water meters intended for the metering of cold potable water. Part 2: Test methods* (Edition 2004)
- R 52 *Hexagonal weights - Metrological and technical requirements* (Edition 2004)
- R 61-1 *Automatic gravimetric filling instruments. Part 1: Metrological and technical requirements - Tests* (Edition 2004)
- R 87 *Quantity of product in prepackages* (Edition 2004)
- R 135 *Spectrophotometers for medical laboratories* (Edition 2004)

Recommendation approved in 2004 by CIML postal approval:

- R 111-1 *Weights of classes E_1 , E_2 , F_1 , F_2 , M_1 , M_{1-2} , M_2 , M_{2-3} and M_3 . Part 1: Metrological and technical requirements* (Edition 2004)

5.4 Draft Recommendations directly presented for sanctioning by the Conference

The Conference sanctioned one new Recommendation *Instruments for measuring the area of leathers* (R 136). The Conference also decided to withdraw OIML Recommendations R 33 and R 62.

6 OIML Certificate System for Measuring Instruments

6.1 Report on the situation of the System

The Conference took note of a report describing progress made with this activity since the establishment of the System in general and since the 11th Conference in particular, including the results of recent inquiries carried out among OIML Members and manufacturers.

6.2 Mutual Acceptance Arrangement (MAA)

The Conference expressed its appreciation to the CIML for the setting up of the Mutual Acceptance Arrangement, and took note that this System will be implemented in 2005.

The Conference took note of proposals concerning the operation of the MAA and of the Certificate System. The Conference instructed the Committee to take appropriate decisions on these proposals and to begin a revision of this document once experience has been gained following its implementation.

6.3 Other developments

The Conference took note of a report concerning the results of various inquiries carried out by the BIML in order to ascertain the views of manufacturers and CIML Members concerning advisable developments of the System.

The Conference confirmed the urgency of addressing the problem of conformity to type of measuring instruments.

7 Developing Countries

7.1 Report on activities for the period 2001–2004

The Conference took note of a report concerning the Development Council meeting held on 25 October and expressed its appreciation to the Chairperson for the work accomplished.

The Conference noted in particular the report concerning the Forum: *Metrology – Trade Facilitator* held on 25 October 2004 and expressed its appreciation to the German Authorities for having organized this event.

7.2 Guidelines for future activity

The Conference noted the Committee's report that, notwithstanding Resolution 7.2 of the 6th International Conference of Legal Metrology which established the OIML Development Council, the OIML's work on Developing Country matters could be more efficiently managed by the establishment of a Permanent Working Group on Developing Countries (PWGDC), which would replace the Development Council.

The Conference therefore approved the decision of the 38th CIML Meeting to create a PWGDC, the terms of reference of which shall be established by the Committee. This Permanent Working Group shall act as an advisory body to the President of the Committee on aspects of the OIML's work relating to Developing Countries.

The Conference also decided to cease the activities of the current Development Council.

8 Administrative and financial matters

8.1 Examination of the management of the budget from 2000 to 2003 and the estimates for 2004

The International Conference of Legal Metrology,

HAVING EXAMINED the report on the management of the budget for the years 2000, 2001, 2002 and 2003;

NOTING that the budget was managed in conformity with the expenses necessary for carrying out the work of the Bureau and that the accuracy of the report has been certified by annual audits;

NOTING that the respective functions assigned by the Convention to the President of the International Committee of Legal Metrology and to the Director of the International Bureau of Legal Metrology have been fulfilled;

GIVES ITS DEFINITIVE DISCHARGE to the President of the Committee and to the Director of the Bureau for their management of the budget during the years mentioned above.

8.2 Decisions related to the debts of certain countries

The Conference adopted the following Resolution:

The International Conference of Legal Metrology,

HAVING EXAMINED the report on the management of the budget for the years 2000, 2001, 2002 and 2003;

NOTING that a large part of the holdings on December 31, 2003 consisted of debts owed by Member States;

URGENTLY REQUESTS that those Member States that are in arrears with their contributions pay their debts as soon as possible;

HAVING NOTED a report by the Director of the Bureau on the situation of certain Member States in arrears with their contributions,

MAKES the following decisions:

* D.P.R of Korea is permitted to remain a full Member of the OIML providing that:

- its current contributions are paid, and
- its arrears are progressively reimbursed over 10 years.

The International Committee of Legal Metrology is requested to annually examine the situation of this Member State and take appropriate action in the event that these conditions are not met.

* The outstanding contribution of Spain related to the year 1992 is considered to have been paid by this country.

* Zambia will be permitted to become an OIML Corresponding Member providing that:

- its current Corresponding Member fees are paid, and
- its arrears are progressively reimbursed over 10 years.

The conditions for the readmission of Zambia as a full Member State will be reconsidered when its arrears amount to less than 3 years' contributions.

The International Committee of Legal Metrology is requested to annually examine the situation of this country and take appropriate action in the event that these conditions are not met.

* The International Committee of Legal Metrology is requested to annually examine the situation of any other Member State which might become more than three years late in the payment of its contributions and to report back about this at the Thirteenth Conference.

8.3 Revision of the OIML Financial Regulations

The Conference approved the revised *OIML Financial Regulations* as established by the Committee.

8.4 Bureau staff and Retirement scheme

The Conference took note of a report given by the BIML Director on this issue.

The Conference noted that the OIML Retirement scheme will be balanced for the period 2005–2008 without an additional endowment from the Organization being necessary.

The Conference noted that additional studies are necessary for assessing the rights of the Staff and the commitments of the Organization concerning the Retirement scheme and for examining how these commitments must be recorded in the Organization's accounts.

The Conference instructed the CIML to undertake these studies and to report and make proposals to the Thirteenth Conference.

8.5 Budget for the financial period 2005–2008

The Conference accepted (with one abstention) to consider the budgetary proposals as a whole and not in separate components.

The Conference adopted the following Resolution:

The International Conference of Legal Metrology,

ACCEPTING the budgetary proposals of the Director of the International Bureau of Legal Metrology for the financial period beginning January 1, 2005 and ending December 31, 2008;

APPROVES the fee structure and the budget for the Organization's expenses annexed to these Decisions and Resolutions;

INSTRUCTS the International Committee of Legal Metrology:

- to annually review the MAA fee structure approved above, and
- to amend it as necessary in order to ensure a fair implementation of the MAA, without compromising the balance of implementation costs and income.

INSTRUCTS the International Committee of Legal Metrology to take the necessary measures (such as calling for voluntary additional contributions or amending certain elements of the budget - with the exception of the Member State base contributory share and the Corresponding Member lump sum subscription fee) in the event that the inflation rate in France differs in a significant manner from the value used for determining the budget (i.e. 2 %) or in the event that other factors render a revision of the accepted budget appropriate;

INSTRUCTS the International Committee of Legal Metrology to annually review the situation of those Member States that benefit from a lower contributory class and requests the Committee to reallocate those Member States concerned to their normal contributory class as soon as their economic situation permits it.

8.6 Status of OIML Publications

The Conference approved the proposal to make all OIML Publications, except those which are published jointly with other Organizations, available free of charge in electronic format on the OIML web site and to cease publishing them on paper.

9 Other business

10 Closure

10.1 Adoption of the Decisions and Resolutions of the Conference

A second roll call of delegates was called and it was found that 53 Member States were present; the statutory quorum of two-thirds as fixed by the Convention was therefore reached.

The Twelfth International Conference adopted the above-mentioned Decisions and Resolutions (*Note: the sanctioning of International Recommendations and the adoption of Resolution 8 were made through nominal votes*).

10.2 Date and place of the next Conference

The Conference decided that it would wait for a period of up to two years, i.e. until 2006, to establish whether any Member State was willing to host the Thirteenth Conference in 2008. If no Member State was forthcoming, then the BIML would organize the Conference in France. ■

Annex: 2005–2008 Budget

Approved by the 12th International Conference of Legal Metrology

(a) Fee structure approved by the Conference

Year	2005	2006	2007	2008
Base Member State contributory share	12 620 €	12 880 €	13 130 €	13 400 €
Corresponding Member Fee	1 020 €	1 020 €	1 020 €	1 020 €
Registration fee for OIML Certificates outside DoMCs	150 €	153 €	156 €	159 €
Registration fee for OIML Certificates covered by a DoMC	500 €	510 €	520 €	530 €
Fees for examination of the candidacy of an Issuing Authority for a DoMC	1 500 €	1 530 €	1 560 €	1 590 €

(b) Base Budget

Year	2005	2006	2007	2008
Operating charges approved by the Conference (*)				
Staff	874 k€	913 k€	947 k€	960 k€
Premises	51 k€	52 k€	52 k€	54 k€
Offices	69 k€	62 k€	62 k€	63 k€
Bulletin	44 k€	45 k€	45 k€	47 k€
Printing	14 k€	15 k€	15 k€	16 k€
Documentation	16 k€	16 k€	17 k€	18 k€
Correspondence	43 k€	43 k€	44 k€	46 k€
Meeting costs	156 k€	162 k€	168 k€	175 k€
Travel	52 k€	53 k€	53 k€	55 k€
Bonuses and miscellaneous	6 k€	7 k€	7 k€	8 k€
Total operating charges	1 325 k€	1 368 k€	1 410 k€	1 442 k€
Financial charges approved by the Conference				
Financial charges	0 k€	0 k€	0 k€	0 k€
Exceptional charges approved by the Conference				
OIML 50 th Anniversary	180 k€			
Expert studies	30 k€	30 k€	30 k€	30 k€
Others				
Total exceptional charges	210 k€	30 k€	30 k€	30 k€

(*) Subject to the agreement of the CIML President, the BIML Director is allowed to operate compensations between the operating charges other than staff charges as far as the total operating charges do not exceed those approved by the Conference.

(c) Additional budget (MAA implementation)

Year	2005	2006	2007	2008
Charges approved by the Conference				
Staff costs for one additional staff member	82 k€	84 k€	91 k€	93 k€
Operating costs for one additional staff member	25 k€	25 k€	26 k€	26 k€
Total operating charges of the additional budget	107 k€	109 k€	117 k€	119 k€